UNITED STATES POSTAL SERVICE®

EEO Compliance & Appeals

Workplace Harassment

What It is and What Managers Must Do



Workplace Harassment : A Modern Conundrum

Workplace Harassment in the workplace raises sensitive and complex concerns.

- **What is fair?**
- **What is foul?**



"The extremes are easy . . . But deciding between them is not an easy task and won't get any easier in the future."

Judy Terence T. Evans, Hennessy v. Penril Datacomm Networks, 69 F. 3d 1344 (7th Cir. 1995)

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What exactly is Workplace Harassment

- Workplace harassment is a form of employment discrimination that violates Title VII of the Civil Rights Act of 1964, the Age and Discrimination in Employment Act of 1967, and the Americans with Disabilities Act of 1990.
- Workplace harassment includes unwelcome actions and comments directed at an individual because of his or her gender.



WORKPLACE HARASSMENT

KNOW YOUR RIGHTS! TAKE RESPONSIBILITY!

ELIMINATING WORKPLACE HARASSMENT

The United States Postal Service™ is committed to providing a work environment free of harassment based upon race, color, religion, sex (including sexual orientation, gender identity, or gender stereotyping), national origin, age (40+), mental or physical disability, or in retaliation for prior Equal Employment Opportunity (EEO) activity and other inappropriate conduct.

The Postal Service workplace must be one in which all employees are treated with dignity and respect by supervisors, subordinates, and coworkers. There is no place in the Postal Service for intimidating, threatening, or coercive behavior.

STOPPING INAPPROPRIATE BEHAVIOR

Although not every instance of inappropriate behavior may meet the legal definition of harassment, such behavior in the workplace undermines morale and violates the Postal Service's policies and standards of conduct. Disciplinary action may result even if the conduct does not rise to the level of harassment as defined under the law, as such conduct nonetheless violates Postal Service policy and will not be tolerated. The Postal Service owes its employees a safe, productive, and inclusive workplace and will tolerate nothing less.

WORKPLACE HARASSMENT IS AGAINST THE LAW

Under federal antidiscrimination laws, harassment is defined as unwelcome verbal or physical conduct that demeans or shows hostility or aversion toward an individual or group of individuals. Employees will be subject to disciplinary action, up to and including removal, for engaging in harassing behavior such as, but not limited to:

- Making offensive or derogatory comments, nicknames, or slurs.
- Engaging in physically threatening, intimidating, or humiliating actions.
- Making or threatening to make employment decisions based on an employee's submission to, or rejection of, sexual advances or requests for sexual favors.
- Deliberate or repeated unsolicited remarks with a sexual connotation, or physical contact of a sexual nature that is unwelcome to the recipient.
- Behavior that creates a sustained hostile or abusive work environment so severe or pervasive that it unreasonably interferes with or changes the conditions of one's employment.

OBLIGATION TO REACT PROMPTLY

Postal Service employees who believe that they are the victims of workplace harassment or inappropriate conduct, or who have witnessed such harassment, should bring the situation to the attention of any one of the following:

- Your immediate supervisor or manager.
- Any supervisor or manager.
- The manager of Human Resources.
- A union representative or coworker to speak to a manager on your behalf.

CONFIDENTIALITY

The Postal Service, to the extent possible, protects the confidentiality of an employee's workplace harassment complaint.

WHAT USPS REQUIRES OF MANAGERS AND SUPERVISORS

Any manager or supervisor who receives a complaint must act to stop any inappropriate behavior, ensure that a prompt and thorough investigation is conducted, and ensure that harassing or inappropriate conduct does not recur—even if the behavior does not rise to the legal definition of harassment.

MANAGEMENT INQUIRY

All managers and supervisors should follow the Management Inquiry Process materials available in Publication 552 when a complaint is brought to their attention. If workplace harassment or inappropriate conduct is found, managers must take prompt and appropriate remedial action.

ADDITIONAL RELIEF

In addition, employees can seek relief through the EEO complaint process, grievance arbitration procedures established through the collective bargaining agreements with the unions, and the nonbargaining grievance procedures described in the *Employee and Labor Relations Manual* (ELM), 650. Employees pursuing an EEO complaint must contact the EEO Centralized Intake Center within 45 days of the act or acts giving rise to the claim in order to preserve their rights under federal law.

CRIMINAL ASSAULT

Report all possible criminal misconduct, sexual or otherwise, to local law enforcement, Postal Management, and the Postal Inspection Service.

RETALIATION IS ILLEGAL

Retaliation against employees who raise a claim of workplace harassment, report inappropriate conduct, or provide evidence in any investigation is illegal and can result in disciplinary action.

ZERO TOLERANCE

The Postal Service will not tolerate any workplace harassment based on race, color, religion, sex (including sexual orientation, gender identity, or gender stereotyping), national origin, age (40+), mental or physical disability, or in retaliation for prior EEO activity, or other inappropriate conduct in the workplace.

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What exactly is Workplace Harassment

- Workplace harassment covers a wide range of behaviors and can consist of words, actions, or a combination of the two.
- The harassment must be objectively hostile, i.e., a reasonable person would find it offensive.
- The harassment must also be subjectively offensive to the harassee, otherwise the conduct would not alter the terms or conditions of employment.



Recognizing Types of Workplace Harassment

Two Types of Harassment Under the Law:

- Tangible Employment Action or Quid Pro Quo Harassment
- Hostile Environment Harassment: Crossing the Line Between Social Nuisance and Harassment

Types of Workplace Harassment

Tangible Employment Action or Quid Pro Quo:

- Tangible Employment Action is the harassment of a subordinate by someone with supervisory authority that results in a tangible employment action.
- A tangible employment action that significantly changes an employee's employment status such as hiring, firing, promoting, demoting, changing work assignments, and reassigning an employee.
- This is usually called "Quid Pro Quo" harassment. Quid Pro Quo is Latin and it means "something for something". It is the use of power and authority to alter an employee's job conditions or economic benefits because the employee or applicant either submits to or refuses to submit to the unwelcome demands of the person in authority.

Types of Workplace Harassment

Elements of Tangible Employment Action or Quid Pro Quo:

- Employee is subject to unwelcome advances or other unwelcome conduct or behavior.
- Acceptance or rejection of the harassment is an express or implied condition to receipt of a job benefit or cause of a job detriment.

Example:

1) Supervisor tells employee that they should have drinks after work since she is on the Review Board considering his promotion.
2) Supervisor fires or demotes a subordinate because he or she rejects the supervisor's demands.

Hostile Work Environment

Covers a broad range of behaviors and situations. It is most often defined as a pattern of continuing unwelcome behavior that unreasonably interferes with an employee's work performance or that creates a intimidating, hostile, or offensive work environment.



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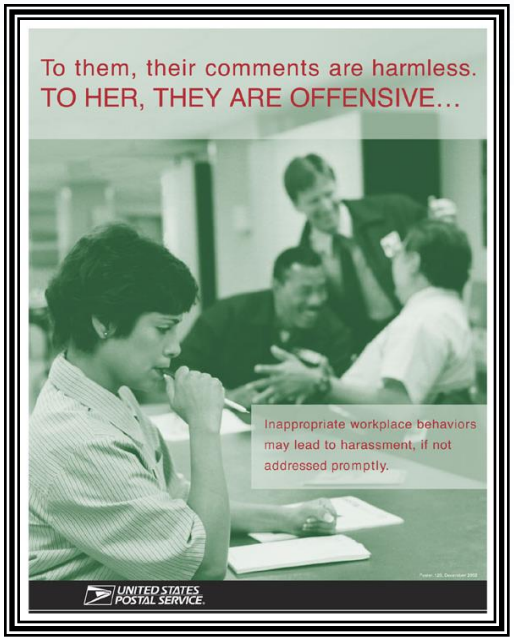
Forms of Harassment

- Verbal
- Non-Verbal
- Graphic
- Physical
- Third-Party



Third Party Harassment

Harassment caused by behavior that is not directed at the harassee *per se*, but that indirectly affects or offends the person.



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Inappropriate Conduct

Postal policy and regulations prohibit inappropriate conduct and conduct that could lead to workplace harassment.

- **Giving preferential treatment to an applicant because a manager desires to date her may not amount to harassment, but it violates postal regulations and standards of ethical conduct.**
- **A manager must not allow employees to provoke colleagues, no matter how seemingly harmless or whether they intend to offend.**

Inappropriate Conduct

"In this environment, office romances have serious legal complications today that they didn't have 20 years ago . . . It's not the relationship, it's the judgment that got you into the relationship that can get you into trouble."



Charles M. Elson, Professor of Corporate Governance, University of Delaware, as reported in *The Washington Post, "Boeing CEO Resigns Over Affair with Subordinate," March 8, 2005*

Legal Consequences

Tangible Employment Action – Quid Pro Quo

The employer is automatically liable for harassment by managers/supervisors when the harassment culminates in a tangible employment action.

Tangible Employment Action

- Demotion
- Denial or Promotion
- Termination
- Unfavorable Reassignment



A tangible employment action requires an official act of the company and in most cases, inflicts direct economic harm.

Legal Consequences
Hostile Environment Harassment

When harassment does not result in a tangible employment action, it is hostile environment harassment.

The employer can raise a defense by showing that:

- It exercised reasonable care to prevent and promptly correct harassing behavior; and
- The employee unreasonably failed to use the corrective measures as provided by the employer (e.g., fails to report the harassment).

Reasonable Care to Prevent and Correct

- Employer has a policy against harassment
- The policy is distributed to all employees
- The policy provides for alternative avenues to report harassment
- The policy gives assurances of confidentiality and provides for no retaliation
- Employees receive harassment training
- Investigations are, in fact, prompt, thorough, and effective
- Harassers are stopped and corrective action is taken



Rationale for Making Employee Jointly Responsible

When an employee promptly complains of inappropriate conduct or harassing behavior, she/he can often deter creation of a hostile environment by preventing the behavior from becoming pervasive or severe.



Initial Management Inquiry Process (IMIP)

When any person in management receives a complaint of harassment, he/she must:

- Take it seriously
- Meet promptly with the employee
- Stop the behavior
- Ensure a full IMIP is done
- Take appropriate final action



Initial Management Inquiry Process (IMIP)

What not to do upon receipt of a complaint:

- **Do not label the conduct Workplace Harassment**
- **Do not dismiss the behavior/conduct as harmless fun or make excuses for it**
- **Do not tell the employee he/she is overreacting**
- **Do not offer your personal opinion**

Initial Management Inquiry Process: Practical Pointers

- Meet promptly with the employee
- Advise of need for confidentiality and its limits
- Listen to his/her story
- Ask questions
- Take notes
- Advise that retaliation is illegal
- Advise that you will pursue the inquiry and get back to him/her with updates
- Reference and download the checklist and interview guidelines from Publication 552, ***Manager's Guide to Understanding, Investigating, and Preventing Harassment*** for ease of use at: http://blue.usps.gov/cpim/ftp/pubs/pub552.pdf

Initial Management Inquiry Process (IMIP)

- Determine whether there is an immediate need to separate the parties and/or recommend EAP counseling.

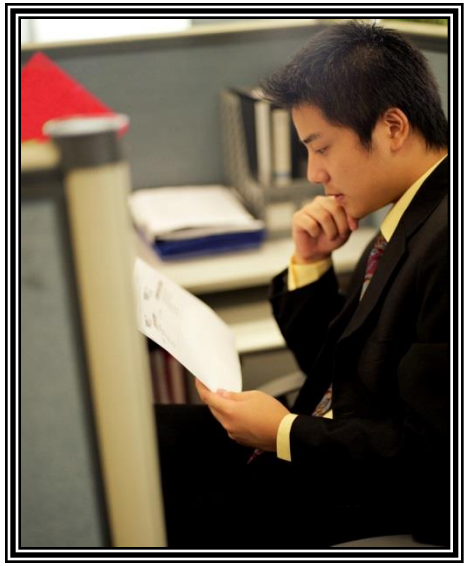
- Assess the nature and scope of the problem in the workplace.

- Together with HR (HQ and HQ field units – next higher level manager), decide whether you can continue with your IMIP and remedy the problem or whether referral to HR or next higher level manager is warranted to complete the investigation.

Initial Management Inquiry Process (IMIP)

Determine whether inappropriate conduct of workplace harassment has occurred:

- **Weigh all the evidence**
- **Assess credibility of witnesses**
- **Consider totality of circumstances**
  - *Nature and severity of conduct*
  - *Pervasiveness of conduct*



Initial Management Inquiry Process (IMIP)

If your inquiry is inconclusive or you find workplace harassment has not occurred

- **Separately report to alleging harassee and alleged harasser**
- **Advise parties retaliation is illegal**
- **Follow up in the workplace and take remedial action if necessary**
- **Make notation of date and subject matter for your personal notes**

Initial Management Inquiry Process (IMIP)

If you find a minor, single incident of workplace harassment has not occurred:

- **Resolve the problem and take remedial action**
- **Separately report to alleging harassee and alleged harasser**
- **Advise parties retaliation is illegal**
- **Follow up in the workplace**
- **Make notation of date and subject matter for your personnel notes**

Initial Management Inquiry Process (IMIP)

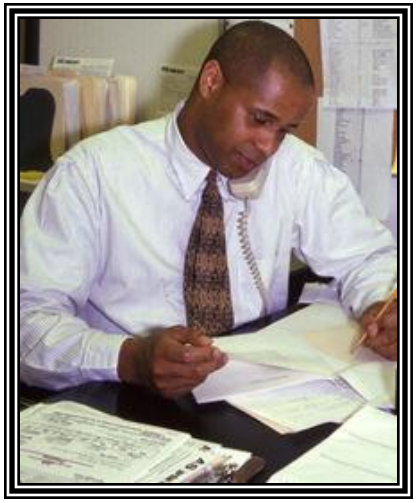
If you find a serious and/or recurring incident of workplace harassment has occurred:

- **Stop harassment/inappropriate behavior**
- **Consult with your Manager, Human Resources or next higher level manager for HQ and HQ field units.**
- **Take appropriate remedial action to stop and deter harassment**
- **Fully document detailed evidence of actions taken**
- **Advise harasser of remedial/disciplinary action and that retaliation is illegal**

Initial Management Inquiry Process (IMIP)

If you find a serious and/or recurring incident of workplace harassment has occurred:

- **Restore the harassee; achieve resolution**
- **Follow up in the workplace**
- **Submit findings under confidential cover to your Mgr. Human Resources or next higher level manager for HQ and HQ field units.**
- **Human resources retains files for 4 years; conducts annual review.**



Fixing the Problem – Remedial Action

Remedial or Corrective Action

- Corrective action must be taken to end the inappropriate conduct
- Impose progressive discipline, as necessary
- Consider supplementing corrective action with stand-up talks, training, EAP Counseling, and monitoring the workplace.

Fixing the Problem – Remedial Action

- Discussion
- Remedial training
- Letter of Warning
- Suspension
- Transfer
- Demotion
- Discharge

Fixing the Problem – Remedial Action

Discipline must be in proportion to the severity of the conduct.

- **A minor, single event:**
  Discussion and/or Training
- **Serious, recurring conduct:**
  Suspension or Discharge

Practical Points for Managers

Weingarten Rule

- **Bargaining unit employees have the right to union representation, upon request, when the employee has a reasonable belief that discipline could result from the interview.**
- **Requests for representation and attendance by a union representative should be documented.**

Deaf and Hard of Hearing:
For deaf and hard of hearing employees, you must provide them a certified interpreter for all stages of the IMIP process.

Practical Points for Managers

- Keep all records, notes and documents confidential and secured in a locked cabinet.
- When the inquiry is complete, forward documents to Manager, Human Resources or for HQ and HQ field units to the next higher level manager under confidential cover.



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Workplace Harassment

Read publication 552, *Manager's Guide to Understanding, Investigating, and Preventing Harassment*

The Initial Management Inquiry Process materials available in Publication 552 should be used by all managers and supervisors.

- **When a complaint is brought to their attention or**
- **When they become aware of behavior that may be workplace harassment.**



You can access publication 552 at:
http://blue.usps.gov/cpim/ftp/pubs/pub552.pdf

Take responsibility and ownership of your workplace.